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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ CRL.M.C. 2235/2018, Crl. M.A. nos. 7948/2018 & 35095/2018
NITENDRA SINGH Petitioner

Through Mr. Rajesh Kumar Singh and Mr.
Sagar Roy, Advs.

versus

GOVT OF NCT OF DELHI & ANR Respondents

Through Mr. Mukesh Kumar, APP
Mr. Manoj Gorkela, Adv. for
respondent no. 2

AND

+ CRL.M.C. 2236/2018 and Crl. M.A. no. 7954/2018
NITENDRA SINGH Petitioner

Through Mr. Rajesh Kumar Singh and Mr.
Sagar Roy, Advs.

versus

GOVT OF NCT OF DELHI & ANR Respondents

Through Mr. Mukesh Kumar, APP
Mr. Manoj Gorkela, Adv. for
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NITENDRA SINGH Petitioner

Through Mr. Rajesh Kumar Singh and Mr.
Sagar Roy, Advs.

versus

GOVT OF NCT OF DELHI & ANR Respondents

Through Mr. Mukesh Kumar, APP



Mr. Manoj Gorkela, Adv. for
respondent no. 2

CORAM:
HON'BLE MR. JUSTICE A.K. PATHAK

ORDER
% 21.02.2019

By these petitions under Section 482 Cr.P.C., Petitioner (accused) has prayed for quashing of three orders, all dated 23rd April, 2018 passed by the learned Metropolitan Magistrate -07, South East District, Saket Courts, New Delhi in three separate complaints under Section 138 of the Negotiable Instruments Act, 1881 ("the Act", for short) filed by respondent no. 2 (complainant) against the petitioner. By the orders impugned in these petitions, learned Metropolitan Magistrate has issued non-bailable warrants against the petitioner and the warrants of attachment for the sum of ₹19,90,000/-, that is, remaining settled amount.

Respondent no. 2 filed the complaints involved in these petitions before the learned Metropolitan Magistrate, Delhi. After recording pre-summoning evidence, petitioner was summoned under Section 138 of the Act. Notice under Section 251 Cr.P.C. was framed. During the pendency of three complaints, matter was referred to the Mediation Centre. Petitioner and respondent no. 2 participated in the mediation proceedings on 22nd January, 2018. A settlement was arrived at between the petitioner and respondent no. 2 before the learned Mediator. Petitioner agreed to pay ₹29,90,000/- in three installments to respondent no. 2 towards the full and final settlement of all the claims of respondent no. 2 in three complaints. Settled amount was to be paid in the following manner:-

- (i) First installment of ₹5,00,000/- on or before 30th January, 2018



- (ii) Second installment of ₹5,00,000/- on or before 15th February, 2018
- (iii) Third installment of ₹19,90,000/- on or before 22nd March, 2018.

It was categorically mentioned in the Settlement Agreement that the settlement was voluntarily arrived at between the parties with their own free will and without any force, pressure or coercion and that both the parties will remain bound by the terms and conditions mentioned in the settlement. Thereafter, matter was taken up by the court on 22nd January, 2018 and following order was passed on 22nd January, 2018 in the presence of both the parties.

“Parties have settled their disputes in mediation vide mediation agreement dated 22.01.2018 Ex. P1 towards all the claims made by the complainant against the accused. Proprietor of the complainant submits that he shall withdraw the said case after receiving payment in the aforesaid terms.

Let statement of both the parties, to this effect, be recorded. Statement recorded.

Parties shall remain bound by the terms of Ex. P1 and statements made before this court.”

On 30th January, 2018 petitioner paid ₹5,00,000/- in cash to respondent no. 2. As regards second installment of ₹5,00,000/- is concerned, petitioner handed over a cheque to respondent no. 2 but the same returned dishonoured. Non-bailable warrants were issued against the petitioner.

Learned counsel for the petitioner submits that settlement was not arrived at voluntarily. It was arrived at by exercising pressure and coercion. This plea, on the face of it, appears to be an afterthought. In the mediation report, which has been signed by the petitioner, it has been categorically mentioned that settlement has been voluntarily arrived at between the parties with their own free will and without any force, pressure or coercion. When the



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matter was taken up in court on 22nd January, 2018 petitioner did not take up any such plea. Rather, his statement was recorded in court, wherein he confirmed having arrived at the settlement before the Mediation Centre. Accordingly, Settlement Agreement was exhibited as Ex. P-1. It is further noted that petitioner even paid ₹5,00,000/- in cash to respondent no. 2 towards the first installment, which was payable on 30th January, 2018. He even issued a cheque with regard to the second installment, which was unfortunately dishonoured.

In *Dayawati vs. Yogesh Kumar Gosain* MANU/DE/3173/2017, a Division Bench of this court has held that in the event of default or non-compliance or breach of settlement agreement by the accused persons, the Magistrate would pass order under Section 431 read with Section 421 of the Cr.P.C. to recover the amount agreed to be paid by the accused in the same manner as a fine would be recovered; besides other action as permissible in law to enforce compliance with the undertaking as well as the orders of the court based thereon, including proceedings under Section 2 (b) of Contempt of courts Act, 1971.

In view of the above, I do not find any perversity in the impugned orders. Petitions are dismissed. Amount, lying deposited before the trial court, be released to the respondent no. 2.

Miscellaneous applications are disposed of as infructuous.

A.K. PATHAK, J.

FEBRUARY 21, 2019

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